

# ORIGINAL CONFIRMATION OF COVER

## NON-LAND TRANSPORTATION OPERATORS VEHICLE

**COC Number : 061012776**

| POLICY DETAILS                                                                                                                                                                                                    |                                           |                                             |                                                                                                                              |                                                        |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------|---------------------------------------------|------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------|
| NAME AND ADDRESS OF INSURED<br><br><b>Erwin Anog</b><br>194 Puno Apt Zigzag St, Malhacan, Meycauayan City,<br>Bulacan, North Luzon, 3020                                                                          |                                           | AUTHENTICATION CODE<br><b>061VMSPC2602</b>  |                                                                                                                              | POLICY NUMBER<br><b>PHIPMCCTPL0100UQ63YQYIAI2P</b>     |
|                                                                                                                                                                                                                   |                                           | BUSINESS/PROFESSION                         |                                                                                                                              | CONFIRMATION OF COVER NUMBER<br><b>061012776</b>       |
|                                                                                                                                                                                                                   |                                           | ISSUE DATE<br><b>13 Feb 2026</b>            |                                                                                                                              | OFFICIAL RECEIPT NUMBER<br><b>HOMO-S000000002700</b>   |
|                                                                                                                                                                                                                   |                                           | PERIOD OF INSURANCE                         |                                                                                                                              |                                                        |
|                                                                                                                                                                                                                   |                                           | FROM 12:00 Noon<br><b>01 Mar 2026</b>       | TO 12:00 Noon<br><b>01 Mar 2027</b>                                                                                          |                                                        |
| SCHEDULED VEHICLE DETAILS                                                                                                                                                                                         |                                           |                                             |                                                                                                                              |                                                        |
| YEAR AND MODEL<br><b>2022 Click 125i</b>                                                                                                                                                                          | MAKE<br><b>Honda</b>                      | TYPE OF BODY<br><b>Motorcycle</b>           | COLOR<br><b>N/A</b>                                                                                                          | MV FILE NUMBER<br><b>180100000409795</b>               |
| PLATE NUMBER<br><b>562QKF</b>                                                                                                                                                                                     | SERIAL NUMBER<br><b>MH1JA4671NK778858</b> | MOTOR NUMBER<br><b>JA46E7778877</b>         | AUTHORIZED SEATING CAPACITY<br><b>1</b>                                                                                      | UNLADEN WEIGHT<br><b>KGS.</b>                          |
| COVERAGE DETAILS                                                                                                                                                                                                  |                                           |                                             |                                                                                                                              |                                                        |
| COVERAGE<br><b>SECTION I/II - THIRD PARTY LIABILITY</b><br>Subject to Schedule of Indemnities Shown Below                                                                                                         |                                           | LIMIT OF LIABILITY<br><b>Php 200,000.00</b> |                                                                                                                              | PREMIUM PAID (INCLUSIVE OF TAXES)<br><b>Php 250.00</b> |
| This Confirmation of Cover is evidence of the policy of the Insurance required under Chapter VI – Compulsory Motor Vehicle Liability Insurance, of the Insurance Code, as amended by Presidential Decree No. 1814 |                                           |                                             | <br><b>Rebecca Dela Cruz</b><br>President |                                                        |

### SCHEDULE OF INDEMNITIES FOR BODILY INJURY AND / OR DEATH

The following schedule of indemnities shall be observed in the settlement of claims for death, bodily injuries of, and professional fees and hospital charges for services rendered to, traffic accident victims under the Compulsory Motor Vehicle Liability Insurance Coverage

| A. DEATH INDEMNITY                                         |                                                                                           | ₱200,000.00                              | C. PERMANENT DISABLEMENT                                                                                                                                                                                                                                                                                                                                                     | AMOUNT     |
|------------------------------------------------------------|-------------------------------------------------------------------------------------------|------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------|
| including Burial and Funeral Expenses                      |                                                                                           |                                          |                                                                                                                                                                                                                                                                                                                                                                              |            |
| B. BODILY INJURIES AND FRACTURES                           |                                                                                           |                                          | Loss of or Loss of Use of:                                                                                                                                                                                                                                                                                                                                                   |            |
| Types of Accommodation or Professional Attendance Extended | Services Rendered                                                                         | Maximum Reimbursable Fees and/or Charges | Two Limbs                                                                                                                                                                                                                                                                                                                                                                    | ₱50,000.00 |
|                                                            |                                                                                           |                                          | Both Hands, or all fingers & both thumbs                                                                                                                                                                                                                                                                                                                                     | 50,000.00  |
|                                                            |                                                                                           |                                          | Both Feet                                                                                                                                                                                                                                                                                                                                                                    | 50,000.00  |
| 1. Hospital Rooms                                          | Maximum of 45 days per accident                                                           | ₱500.00/day                              | One Hand and one foot                                                                                                                                                                                                                                                                                                                                                        | 50,000.00  |
|                                                            | Laboratory Examination fees, X-rays                                                       | 2,000.00                                 | Sight of both eyes                                                                                                                                                                                                                                                                                                                                                           | 50,000.00  |
|                                                            |                                                                                           |                                          | Injuries resulting in being permanently bedridden                                                                                                                                                                                                                                                                                                                            | 50,000.00  |
| 2. Surgical Expenses                                       | Major Operation.                                                                          | 7,500.00                                 | Any other injury causing permanent total disablement                                                                                                                                                                                                                                                                                                                         | 50,000.00  |
|                                                            | Medium Operation                                                                          | 5,000.00                                 | Arm at or above elbow                                                                                                                                                                                                                                                                                                                                                        | 20,000.00  |
|                                                            | Minor Operation                                                                           | 1,500.00                                 | Arm between elbow and wrist                                                                                                                                                                                                                                                                                                                                                  | 15,000.00  |
|                                                            |                                                                                           |                                          | Hand                                                                                                                                                                                                                                                                                                                                                                         | 15,000.00  |
| 3. Anesthesiologist's Fees                                 | Major Operation                                                                           | 2,500.00                                 | Four fingers and thumb of one hand                                                                                                                                                                                                                                                                                                                                           | 15,000.00  |
|                                                            | Medium Operation                                                                          | 2,000.00                                 | Four fingers                                                                                                                                                                                                                                                                                                                                                                 | 12,000.00  |
|                                                            | Minor Operation                                                                           | 500.00                                   | Leg at or above knee                                                                                                                                                                                                                                                                                                                                                         | 20,000.00  |
|                                                            |                                                                                           |                                          | Leg below knee                                                                                                                                                                                                                                                                                                                                                               | 15,000.00  |
| 4. Operating Room                                          | Major Operation                                                                           | 1,500.00                                 | One foot                                                                                                                                                                                                                                                                                                                                                                     | 15,000.00  |
|                                                            | Medium Operation                                                                          | 1,000.00                                 | All toes of one foot                                                                                                                                                                                                                                                                                                                                                         | 10,000.00  |
|                                                            | Minor Operation                                                                           | 500.00                                   | Thumb                                                                                                                                                                                                                                                                                                                                                                        | 8,000.00   |
|                                                            |                                                                                           |                                          | Index finger                                                                                                                                                                                                                                                                                                                                                                 | 6,000.00   |
| 5. Medical Expenses                                        | For daily visits of Practitioner or Specialists                                           | 400.00/day                               | Sight of one Eye                                                                                                                                                                                                                                                                                                                                                             | 20,000.00  |
|                                                            |                                                                                           |                                          | Hearing of both Ears                                                                                                                                                                                                                                                                                                                                                         | 30,000.00  |
|                                                            |                                                                                           |                                          | Hearing of one Ear                                                                                                                                                                                                                                                                                                                                                           | 15,000.00  |
|                                                            | The total amount of medical expenses must not exceed (For a single period of confinement) | 5,000.00                                 | <b>D. OTHER INCIDENTAL EXPENSES</b><br>The Company will pay all pertinent and reasonable expenses incurred in connection with the accident not provided under this Schedule of Indemnities (A), (B), and (C), subject to a maximum amount of P10,000.00 but in no case shall the Company's aggregate payment exceed the overall Limits of Liability under Sections I and II. |            |
| 6. Drugs and Medicine                                      | Actual value of drugs and medicine used but not to exceed                                 | 20,000.00                                |                                                                                                                                                                                                                                                                                                                                                                              |            |
| 7. Ambulance                                               | Actual amount charged for ambulance but not to exceed                                     | 1,500.00                                 |                                                                                                                                                                                                                                                                                                                                                                              |            |

## MOTOR CAR POLICY COMPULSORY THIRD PARTY LIABILITY (CTPL) INSURANCE STAND-ALONE MOTORCYCLE POLICY

### POLICY SCHEDULE

**POLICY DETAILS**

|                   |                                                                                     |                             |                                                          |
|-------------------|-------------------------------------------------------------------------------------|-----------------------------|----------------------------------------------------------|
| Line of Business  | Motor Car                                                                           | Issue date                  | 13 Feb 2026                                              |
| Policy Number     | PHIPMCCTPL0100UQ63YQYIAI2P                                                          | Period of Insurance         | From 12:00 Noon 01 Mar 2026<br>To 12:00 Noon 01 Mar 2027 |
| Insured's Name    | Erwin Anog                                                                          | Premium                     | Php 199.79                                               |
| Insured's Address | 194 Puno Apt Zigzag St,<br>Malhacan, Meycauayan City,<br>Bulacan, North Luzon, 3020 | Documentary Stamp Tax (DST) | 24.97                                                    |
|                   |                                                                                     | Value-Added Tax (VAT)       | 23.98                                                    |
|                   |                                                                                     | Local Business Tax (LBT)    | 1.26                                                     |
|                   |                                                                                     | Other Fees                  | 49.00                                                    |
|                   |                                                                                     | Total Premium Due           | Php 299.00                                               |

**SCHEDULED VEHICLE DETAILS**

|                    |            |                              |                   |
|--------------------|------------|------------------------------|-------------------|
| Year               | 2022       | MV File Number               | 180100000409795   |
| Make               | Honda      | Motor Number                 | JA46E7778877      |
| Model              | Click 125i | Serial Number                | MH1JA4671NK778858 |
| Type of Body       | Motorcycle | Confirmation of Cover Number | 061012776         |
| Color              | N/A        | Authorized Seating Capacity  | 1                 |
| Plate Number       | 562QKF     | Authentication Code          | 061VMSPC2602      |
| Conduction Sticker |            |                              |                   |

**COVERAGE DETAILS**

| Coverage                                                                                      | Limit of Liability | Deductible | Towing Limit | Authorized Repair Limit | Premium (Inclusive of Taxes) |
|-----------------------------------------------------------------------------------------------|--------------------|------------|--------------|-------------------------|------------------------------|
| Compulsory Third Party Liability<br>Section I/II - Liability to the Public/No Fault Indemnity | Php 200,000.00     | N/A        | N/A          | N/A                     | Php 250.00                   |

Documentary Stamp has been affixed and properly cancelled on the office copy of this Policy.



A Member of the Sea Group

## CLAUSES AND WARRANTIES

1. Terrorism Exclusion Clause
2. Documentary Stamp Tax Clause
3. No Loss Warranty
4. Motor Personal Accident Clause
5. Drunken Driver's Clause
6. Notice of Claim Clause

IN WITNESS WHEREOF, the Company has caused this Policy to be signed by its duly authorized officer or representative of the Company.



**Rebecca Dela Cruz**  
President

## IMPORTANT NOTICE

The Insurance Commission, with offices in Manila, Cebu, and Davao, is the government office in charge of the enforcement of all laws relating to insurance and has supervision over insurance companies and intermediaries. It is ready at all times to assist the general public in matters pertaining to insurance. For any inquiries or complaints, please contact the Public Assistance and Mediation Division (PAMD) of the Insurance Commission at 1071 United Nations Avenue, Manila with telephone numbers +632-85238461 local 103 or 127, +639171160007 for Globe subscribers, +639999930637 for Smart subscribers, and email address [publicassistance@insurance.gov.ph](mailto:publicassistance@insurance.gov.ph). The official website of the Insurance Commission is [www.insurance.gov.ph](http://www.insurance.gov.ph).

# **MOTOR CAR POLICY COMPULSORY THIRD PARTY LIABILITY (CTPL) INSURANCE STAND-ALONE MOTORCYCLE POLICY**

In this Policy, the words "The Company", "We", "Us", and "Our" refer to **Sealnsure General Insurance Co., Inc.** Unless the context requires otherwise, words importing the singular include the plural and vice versa and words importing a gender include every gender.

## **AUTHORIZED DRIVER:**

Any of the following: (a) The Insured  
(b) Any person driving on the Insured's order or with his permission.

Provided that the person driving is permitted, in accordance with the licensing law or other regulations, to drive the Scheduled Vehicle, or has been permitted and is not disqualified by order of a Court of Law or by reason of any enactment or regulation in that behalf, provided that for Sections I and II only of this Policy an authorized driver shall include a duly licensed driver but whose license at the time of the accident had expired.

## **LIMITATIONS AS TO USE:**

Use only for social, domestic and pleasure purposes, and for the Insured's business or profession. This Policy does not cover:

- (1) Use for the hauling and/or carrying of logs, lumber, sand, gravel, bottled beverages, gasoline products and /or other inflammable articles or materials.
- (2) Use for racing, pacemaking, reliability trial, or speed testing.

N.B. Provided that limitations (1) and (2) above may be deleted and the risks named therein covered by this Policy upon agreement by, and payment of 20% additional premium to the Company.

- (3) Use for the carriage of PASSENGERS or for hire or reward.
- (4) Use for any purpose in connection with the Motor Trade.

SECTIONS I and II of this Policy cover THIRD PARTY liability arising from bodily injury and/or death in amounts set forth under the Schedule of Indemnities.

WHEREAS THE ASSURED, by his corresponding proposal and declaration, and which shall be the basis of this Contract and deemed incorporated herein, has applied to the Company for the insurance hereinafter contained, subject to the payment of the Premium as consideration for such insurance.

## **NOW THIS POLICY WITNESSETH:**

That, in respect of events occurring during the period of Insurance, and subject to the terms, exceptions and conditions contained herein or endorsed hereon (hereinafter collectively referred to as the Terms of this Policy):

## **SECTION I – LIABILITY TO THE PUBLIC**

1. The Company will pay all sums necessary to discharge liability of the Insured, arising from all expenses and damages directly resulting from any bodily injury and/or death to any Third Party (excluding all moral, exemplary and other incidental damages, expenses, and loss of income) in an accident caused by the use of the Scheduled Vehicle, provided that the Insured's liability shall have first been determined, but not exceeding in the aggregate P200,000.00 per occurrence or any one occurrence, regardless of the number of individual claims.
2. In terms of and subject to the limitations of this Policy, the Company will indemnify:
  - (a) Any authorized Driver who is driving the Scheduled Vehicle, provided that he:
    - (i) observes, fulfills, and be subject to the Terms of this Policy insofar as they can apply;
    - (ii) is not entitled to indemnity under any other policy subject, however, to Condition No. 8 of the Conditions Applicable To All Sections;
  - (b) The Insured while personally driving a motorcycle not belonging to him and not hired to him under a hire purchase agreement.
3. In the event of the death of any person entitled to indemnity under this Policy the Company will, in respect of the liability incurred to such person indemnify his personal representatives in terms of, and subject to terms and conditions hereof.

4. In the event of accident involving indemnity under this Policy to more than one person, the Limits of Liability shall not exceed the aggregate amount so specified by Law to all persons to be indemnified. Should indemnification both to liability of the Insured and that of another party (as provided under Authorized Driver) be provable, the Insured shall have prior right thereto.
5. Unless the Insured objects, the Company shall:
- arrange for representation at any inquest or investigation in respect of any death which may be the subject of indemnity under this Section;
  - undertake the defense in the Insurance Commission under Section 398 of the Amended Insurance Code or in any court of Law, for alleged offenses causing or relating to any event which may be the subject of indemnity under this Section.

#### SCHEDULE OF INDEMNITIES FOR BODILY INJURY AND/OR DEATH

The following Schedule of Indemnities shall be observed in the settlement of claims for death, bodily injuries, professional fees, and hospital charges for services rendered to traffic accident victims under the Compulsory Motor Vehicle Liability Insurance Coverage.

| A. DEATH INDEMNITY                    |                                                                                           | ₱ 200,000.00        | C. PERMANENT DISABLEMENT                             | AMOUNT   |
|---------------------------------------|-------------------------------------------------------------------------------------------|---------------------|------------------------------------------------------|----------|
| including Burial and Funeral Expenses |                                                                                           |                     |                                                      |          |
| B. BODILY INJURIES AND FRACTURES      |                                                                                           |                     | Loss of or Loss of Use of:                           |          |
| <u>Types of</u>                       | <u>Services Rendered</u>                                                                  | <u>Maximum</u>      | Two Limbs                                            | ₱ 50,000 |
| <u>Accommodation</u>                  |                                                                                           | <u>Reimbursable</u> | Both Hands, or all fingers & both thumbs             | 50,000   |
| <u>or Professional</u>                |                                                                                           | <u>Fees and/or</u>  | Both Feet                                            | 50,000   |
| <u>Attendance</u>                     |                                                                                           | <u>Charges</u>      | One Hand and one foot                                | 50,000   |
| <u>Extended</u>                       |                                                                                           |                     | Sight of both eyes                                   | 50,000   |
| 1. Hospital Rooms                     | Maximum of 45 days per accident                                                           | ₱ 500/day           | Injuries resulting in being permanently bedridden    | 50,000   |
|                                       | Laboratory Examination fees, X-rays                                                       | 2,000               | Any other injury causing permanent total disablement | 50,000   |
| 2. Surgical Expenses                  | Major Operation                                                                           | 7,500               | Arm at or above elbow                                | 20,000   |
|                                       | Medium Operation                                                                          | 5,000               | Arm between elbow and wrist                          | 15,000   |
|                                       | Minor Operation                                                                           | 1,500               | Hand                                                 | 15,000   |
| 3. Anesthesiologists Fees             | Major Operation                                                                           | 2,500               | Four Fingers and thumb of one hand                   | 15,000   |
|                                       | Medium Operation                                                                          | 2,000               | Four Fingers                                         | 12,000   |
|                                       | Minor Operation                                                                           | 500                 | Leg at or above knee                                 | 20,000   |
| 4. Operating Room                     | Major Operation                                                                           | 1,500               | Leg below knee                                       | 15,000   |
|                                       | Medium Operation                                                                          | 1,000               | One foot                                             | 15,000   |
|                                       | Minor Operation                                                                           | 500                 | All toes of one foot                                 | 10,000   |
| 5. Medical Expenses                   | For daily visits of Practitioner or Specialist                                            | 400/day             | Thumb                                                | 8,000    |
|                                       | The total amount of medical expenses must not exceed (For a single period of Confinement) | 5,000               | Index Finger                                         | 6,000    |
| 6. Drugs and Medicine                 | Actual value of drugs and medicine used but not to exceed                                 | 20,000              | Sight of one Eye                                     | 20,000   |
|                                       |                                                                                           |                     | Hearing – both Ears                                  | 30,000   |
| 7. Ambulance                          | Actual amount charged for ambulance transport but not to exceed                           | 1,500               | Hearing – one Ear                                    | 15,000   |

#### D. OTHER INCIDENTAL EXPENSES

The Company will pay all pertinent and reasonable expenses incurred in connection with the accident not provided under this Schedule of Indemnities (A), (B), and (C), subject to a maximum amount of P10,000.00 but in no case shall the Company's aggregate payment exceed the overall Limits of Liability under Sections I and II.

## SECTION II – NO FAULT INDEMNITY

The Company will pay any claim for bodily injury and/or death to any THIRD PARTY without the necessity of proving fault or negligence of any kind, provided that,

- (a) the total indemnity in respect of any one THIRD PARTY shall not exceed Thirty Thousand Pesos (P30,000.00), subject to the foregoing Schedule of Indemnities in case of death or physical injury, without prejudice to the claimant from pursuing his claim further, in which case he shall not be required or compelled by the Company to execute any Quit Claim or document releasing it from liability under the policy of insurance.
- (b) the following proofs of loss, when submitted under oath, shall be sufficient evidence to substantiate the claim:
  - (i) Police report of accident or any evidence sufficient to establish the accident, and
  - (ii) Medical report and evidence of medical or hospital expenses and/or;
  - (iii) Death Certificate and evidence sufficient to establish the proper payee.

## GENERAL EXCEPTIONS

The Company shall not be liable under any Section of this Policy in respect of:

1. Any accident, or liability caused, or incurred:
  - (a) outside the Republic of the Philippines; or
  - (b) while the Scheduled Vehicle is:
    - (i) being used otherwise than in accordance with the limitations as to use;
    - (ii) being driven by any person other than an Authorized Driver;
    - (iii) on board a sea vessel on inter-island transit.
2. Any liability which attached by virtue of an agreement, but which would not have attached in the absence of such agreement, except liability arising out of an on-the-spot agreement or amicable settlement of minor accident to avoid impairing the flow of traffic.
3. Except in respect of claims arising under Sections I and II of this Policy, any accident, loss, damage or liability directly or indirectly, proximately or remotely occasioned by, contributed to by or traceable to, or arising out of, or in connection with flood, typhoon, hurricane, volcanic eruption, earthquake or other convulsion of nature, invasion, the act of foreign enemies, hostilities or warlike operations (whether war be declared or not), strike, riot, civil commotion, mutiny, rebellion, insurrection, military or usurped power, or by any direct or indirect consequences of any of the said occurrences and in the event of any claim hereunder, the Insured shall prove that the accident, loss or damage or liability arose independently of, and was in no way connected with, or occasioned by, or contributed to, any of the said occurrences, or any consequence thereof, and in default of such proof, the Company shall not be liable to make any payment in respect of such a claim.
4. Any sum which the Insured would have been entitled to recover from any party but for an agreement between the Insured and such party.
5. Bodily injury and/or death to any person in the employ of the Insured arising out of and in the course of such employment, or bodily injury and/or death to any member of the Insured's household who is riding in the Scheduled Vehicle.

## DEFINITIONS

1. MOTOR VEHICLE is any vehicle as defined in Section Three, paragraph (a) of Republic Act - Numbered Four Thousand One Hundred Thirty-Six, otherwise known as the "Land Transportation and Traffic Code".
2. THIRD PARTY is any person other than a PASSENGER as defined in the law and shall also exclude a member of the household, or a member of the family within the second degree of consanguinity or affinity, of a motor vehicle owner or his employee in respect of death, bodily injury or damage to property arising out of and in the course of employment.

## CONDITIONS APPLICABLE TO ALL SECTIONS

1. This Policy and the Schedule shall be read together, as one contract, and any word or expression to which a specific meaning has been attached in any part of this Policy or of the Schedule shall bear such specific meaning wherever it may appear.
2. Every notice or communication to be given or made under this Policy shall be delivered in writing to the Company or through the designated channel for that purpose.
3. The Insured shall take all reasonable steps to safeguard the Scheduled Vehicle from loss or damage and to maintain the Scheduled Vehicle in efficient condition, and the Company shall have, at all times, free and full access to examine the Scheduled Vehicle or any part thereof or any driver or employee of the Insured. In the event of any accident or breakdown, the Scheduled Vehicle shall not be left unattended without proper

precaution being taken to prevent further loss or damage and if the Scheduled Vehicle be driven before the necessary repairs are effected, any extension of the damage or any further damage to the Scheduled Vehicle shall be excluded from the scope of the indemnity granted by this Policy.

4. In the event of any accident which may give rise to a claim under this Policy, the Insured shall, as soon as possible, give notice thereof to the Company with full particulars. Every letter, claim, writ, summons and process shall be notified or forwarded to the Company immediately on receipt. Notice shall also be given to the Company immediately as soon as the Insured shall have knowledge of any impending prosecution, inquest or fatal inquiry in connection with any such occurrence. In case of carnapping or other criminal act which may give rise to a claim under this Policy, the Insured shall give immediate notice to the Police and cooperate with the Company in securing the conviction of the offender.
5. Without prejudice to No. 2 of the General Exceptions, no admission, offer, promise or payment shall be made by or on behalf of the Insured without the written consent of the Company which shall be entitled to take over the conduct in his name the defense or settlement of any claim, or to prosecute in his name for its own benefit any claim for indemnity or damages or otherwise, but shall not exercise any discretion prejudicial to the interest of the Insured in the conduct of any proceedings in the settlement of any claim, and the Insured shall give all such information and assistance as the Company may require. If the Company shall with the consent of the Insured make any payment in settlement of any claim, and such payment includes any amount not covered by this Policy, the Insured shall repay the Company the amount not so covered.
6. At any time after the happening of any event giving rise to a claim or series of claims under this Policy, the Company may pay to the Insured and the Third Party claimant jointly the full amount of the Company's liability and relinquish the conduct of any defense, settlement or proceedings, and the Company shall not be responsible for any damage alleged to have been caused to the Insured in consequence of any alleged action or omission of the Company in connection with such defense, settlements or proceedings or of the Company relinquishing such conduct, nor shall the Company be liable for any costs or expenses whatsoever incurred by the Insured or any claimant or other person after the Company shall have so relinquished.
7. The Company may cancel this Policy in accordance with Sections 64, 65, and 393 of the Amended Insurance Code, in which case, the Company shall thereupon return to the Insured premiums paid less the pro-rata portion thereof for the period when the Policy has been in force. The Insured may, at anytime, cancel the Policy by surrendering it to the Company and (provided no claim has arisen during the then current period of Insurance) the Insured shall be entitled to a return of the premium at the Company's Short Period Rates for the period when the Policy has been in force. However, in respect of Sections I and II, the cancellation made by the Insured shall not be effective unless he has secured a similar policy of insurance or surety bond to replace the Policy to be cancelled or make a cash deposit in sufficient amount with the Commissioner and without any gap file within five (5) working days from the date of cancellation the required documentation with the Bureau of Land Transportation in accordance with Section 394 of the Amended Insurance Code.
8. If, at the time any claim arises under this Policy, there is any other insurance covering the same loss, damage or liability, the Company shall not be liable to pay or contribute more than its ratable proportion of any loss, damage, compensation, costs, or expenses. Provided always that nothing in this Condition shall impose on the Company any liability from which, but for this Condition, it would have been relieved under proviso (ii) of Section I-2 (a) of this Policy.
9. In case of dispute in the enforcement of the provisions of Sections I and II of this Policy, the adjudication of such dispute shall be within the original and exclusive jurisdiction of the Insurance Commissioner, subject to the limitations provided in Section 439 of the Amended Insurance Code.
10. The due observance and fulfillment of the Terms of this Policy, insofar as they relate to anything to be done or not to be done by the Insured, and the truth of the statements and answer in the proposal, shall be conditions precedent to any liability of the Company to make any payment under this Policy.
11. In the event that the Company should pay or be held liable to pay any claim or claims under the "No Fault" provision of the Amended Insurance Code, the Insured shall reimburse the Company all such sums, whenever the Insured or his authorized driver or representative has committed a breach of any of the warranties, clauses or conditions of the Policy, or whenever the circumstances fall under any of the EXCEPTIONS listed in the Policy, for which the Company would not have been liable were it not for the application of the "No Fault" provision of the Amended Insurance Code.

#### **NUCLEAR EXCLUSIONS CLAUSE**

1. This Policy does not cover:
  - (a) Loss or destruction of, or damage to any property whatsoever or any loss or expense whatsoever resulting or arising therefrom, or any consequential loss;
  - (b) Any legal liability of whatsoever nature, directly or indirectly caused by, or contributed to by, or arising from, ionizing radiations or contamination by radioactivity from any nuclear fuel, or from any nuclear waste from the combustion of nuclear fuel. For the purpose of this exclusion, only combustion shall include any self-sustaining process of nuclear fission.
2. The indemnity provided by this Policy, shall not apply to nor include any loss, destruction, damage, or legal liability directly or indirectly caused by or contributed to, by, or arising from, nuclear weapons material.

## CIVIL CODE ARTICLE 1250 WAIVER CLAUSE

IT IS HEREBY DECLARED AND AGREED that the provision of Article 1250 of the Civil Code of the Philippines (Republic Act No. 386) which reads:

*"In case an extraordinary inflation or deflation of the currency stipulated should supervene, the value of the currency at the time of the establishment of the obligation shall be the basis of payment ..."*

shall not apply in determining the extent of liability under the provisions of this Policy.

## SHORT PERIOD RATE SCALE

It is hereby agreed, in the event this Policy is surrendered by the Insured for cancellation, the Company shall retain a premium in accordance with the following scale for the time the Policy has been in force:

| No. of Months | 1  | 2  | 3  | 4  | 5  | 6  | 7  | 8  | 9  | 10 | 11 |
|---------------|----|----|----|----|----|----|----|----|----|----|----|
| Percentage    | 20 | 30 | 40 | 50 | 60 | 70 | 75 | 80 | 85 | 90 | 95 |

## CLAUSES AND WARRANTIES WORDINGS

### TERRORISM EXCLUSION CLAUSE

Notwithstanding any provision to the contrary within this insurance or any endorsement thereto it is agreed that this insurance excludes loss, damage, cost, or expense of whatsoever nature directly or indirectly caused by, resulting from or in connection with any act of terrorism regardless of any other cause or event contributing concurrently or in any other sequence to the loss.

For the purpose of this clause, an act of terrorism means an act, including but not limited to the use of force or violence and/or the threat thereof, of any person or group(s) of persons, whether acting alone or on behalf of or in connection with any organization(s) or government(s), committed for political, religious, ideological or similar purposes including the intention to influence any government and/or to put the public, or any section of the public, in fear.

This clause also excludes loss, damage, cost, or expense of whatsoever nature directly or indirectly caused by, resulting from or in connection with any action taken in controlling, preventing, suppressing or in any way relating to any act of terrorism.

If the Insurer alleges that by reason of this exclusion, any loss, damage, cost, or expense is not covered by this insurance the burden of proving the contrary shall be upon the Insured.

In the event any portion of this clause is found to be invalid or unenforceable, the remainder shall remain in full force and effect.

### PAYMENT OF DOCUMENTARY STAMP TAX WARRANTY

Effective October 01, 2001, the Bureau of Internal Revenue under Revenue Regulations Number 15-2001, has implemented the use of "ON-LINE ELECTRONIC DOCUMENTARY STAMP TAX (DST)" among insurance companies.

In view of the above, the Documentary Stamp Tax (DST) becomes immediately due once a policy is issued. In effect, when a policy is cancelled, the liability for DST still exists and the same should be chargeable to the Insured.

### NO LOSS WARRANTY

In view of the Insured having declared that there had been no loss whatsoever on the subject matter insured that may be claimable under this Policy as of the date this Policy was issued and in consideration thereof the Insurer has agreed to charge the premium specified in the Policy Schedule, it is hereby declared and agreed that notwithstanding what is stated in the Period of Insurance in the said Policy Schedule, this Policy will not respond for any loss or any liability of whatever nature that have occurred or emanated whether proximately or remotely prior to the date of issuance of this Policy.

### MOTOR PERSONAL ACCIDENT

In consideration of the payment of an additional premium, it is hereby understood and agreed that the Company undertakes to pay compensation on the scale provided below for the bodily injury as hereinafter defined sustained



(other than the insured) while mounting into, dismounting from, or travelling in the Scheduled Vehicle as specified in the Policy Schedule, and caused by violent accidental external and visible means which independently of any other cause shall within **three (3) calendar months** of the occurrence of such injury result in:

| Coverage                                                                                                                                                       | Limit                                                |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------|
| (1) Death                                                                                                                                                      | 100% of Limit of Liability in the Policy Schedule    |
| (2) Total and irrecoverable loss of all sight in both eyes                                                                                                     |                                                      |
| (3) Total loss by physical severance at or above wrist or ankle of both hands or both feet or of one hand together with one foot                               |                                                      |
| (4) Total loss by physical severance at or above wrist or ankle of one hand or one foot together with the total and irrecoverable loss of all sight in one eye |                                                      |
| (5) Total and irrecoverable loss of all sight in one eye                                                                                                       | 50% of the Limit of Liability in the Policy Schedule |
| (6) Total loss by physical severance at or above the wrist or ankle of one hand or one foot                                                                    |                                                      |
| (7) Total disablement from engaging in or giving any attention to such person's occupation per week for a period not exceeding 26 weeks.                       | 10% of Limit of Liability in the Policy Schedule     |
| (8) Medical indemnity (medical or surgical treatment consequent upon such injury)                                                                              |                                                      |

Provided always that:

(a) Compensation shall be payable under one only of items (1) to (8) above in respect of any such person arising out of any one occurrence and the total liability of the Company shall not in the aggregate exceed the Limit of Liability per one (1) Authorized Driver specified in the Policy Schedule during any one period of insurance.

(b) No weekly compensation shall become payable until the total amount shall have been ascertained and agreed.

(c) Such person is not less than twenty (20) nor more than seventy (70) years of age at the time of injury.

(d) No compensation shall be payable in respect of death or injury directly or indirectly wholly or in part arising or resulting from or traceable (i) intentional self-injury suicide (whether felonious or not) or attempted suicide physical defect or infirmity or (ii) an accident happening while such person is under the influence of intoxicating liquor or drugs.

(e) Such compensation shall be payable only with the approval of the Insured and directly to the injured person or to his legal personal representative whose receipt shall be a full discharge in respect of the injury to such person.

(f) Not more than the number of persons stated in the Policy Schedule are in the Scheduled Vehicle at the time of the occurrence of such injury. If the number of persons exceed the number stated in the Policy Schedule, the total coverage shall be divided proportionately to the actual number of persons at the time of the loss.

#### DRUNKEN DRIVER'S CLAUSE

It is hereby declared and agreed that the Company shall not indemnify the Insured in respect of claims arising from accidents while the driver of the Scheduled Vehicle is under the influence of intoxicated liquor, drugs, chemicals, and the like, in accordance with Republic Act No. 10586, otherwise known as the Anti-Drunk and Drugged Driving Act of 2013.

#### NOTICE OF CLAIM CLAUSE

It is hereby declared and agreed that, in the event of any accident which may give rise to a claim payable under this Policy, the Insured shall give notice thereof to the Company within **thirty (30) days** from the date of the accident, with full particulars of the claim. Failure to do so may result in the claim not being payable by the Policy, unless it was not reasonably possible to give such proof within such time.